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Case Number: 22STCV29823 Hearing Date: September 16, 2026 Dept: 509

Otter Lake Farm, LLC v. Al Mizrahie, et al.

JUDGMENT CREDITOR'S MOTION FOR ATTORNEY'S FEES, COSTS, AND EXPENSES

MOVING PARTY: Judgment Creditor Otter Lake Farm, LLC

RESPONDING PARTY(S): Judgment Debtor Al Mizrahie

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

Otter Lake Farm, LLC, (Judgment Creditor) brought this unlawful detainer action against defendants Al Mizrahie and Alma Mizrahie (Judgment Debtors) for possession of commercial property.

On February 9, 2023, Judgment Creditor obtained a stipulated unlawful detainer judgment.

In September 2025, the parties entered into a Conditional Post Judgment Occupancy Agreement that allowed Judgment Debtors to continue their occupancy while preserving the stipulated judgment.

On March 25, 2026, Judgment Creditor sought issuance of a writ of possession to enforce the judgment. Judgment Debtors opposed, arguing, among other things, that Judgment Creditor had created a new tenancy through the Agreement, that Judgment Creditor was required to prosecute a new unlawful detainer action.

On May 18, 2026, Judgment Debtors' Request to Stay Writ of Possession was denied, and this Court lifted the stay of execution.

On June 15, 2026, Judgment Creditor filed this instant motion to recover their reasonable attorney's fees and costs.

On July 8, 2026, the Court continued this motion and ordered Judgment Creditor to properly serve both Judgment Debtors. On July 10, 2026, Judgment Creditor properly served both Judgment Debtors in the manner prescribed in the July 8, 2026, Minute Order. (7/13/26 Notice.) Al Mizrahie opposed. Alma Mizrahie did not file an opposition.

The Court now rules considering the entire record before it.

TENTATIVE RULING:

Judgment Creditor's Motion for Attorney's Fees is GRANTED in the amount of \$8,100.00.

Judgment Creditor's Motion for Costs is GRANTED in the amount of \$163.50.

Judgment Creditor is ordered to give notice.

DISCUSSION:

Motion for Attorney's Fees, Costs, and Expenses

I. Analysis

A. Entitlement to Fees

On September 30, 2025, the parties entered into a Conditional Post-Judgment Occupancy Agreement (Agreement). This Agreement stated that "In any action or proceeding arising out of or related to this Agreement, the prevailing party shall be entitled to recover its reasonable attorney's fees and costs." (Pena Decl. Exh. 2 at §10.)

Judgment Creditor now moves for an order awarding attorney's fee of \$8,100 and \$163.50 in costs arising from the enforcement of the writ of possession opposed by the Judgment Debtors.

Code of Civil Procedure, section 685.080, allows for post-judgment collection of fees and here, the Agreement governs such collection. In opposing the writ of possessions, Judgment Debtors argued, in part that "Plaintiff and Defendants Created A New Periodic Tenancy that Requires a New Unlawful Detainer Action to Terminate." (4/8/26 Defendants' Memorandum of Points and Authorities at p. 6:8-9.) As this proceeding related to the interpretation of the Agreement, the attorney's fees provision in the Agreement applies. Further, there can be no dispute that Judgment Creditor was the prevailing party in the subsequent proceedings. (See 5/19/26 Order.)

Accordingly, Judgment Creditor is entitled to an award of reasonable attorney fees as the prevailing party under the Agreement.

B. Reasonableness of Fees (Lodestar)

The determination of reasonable amount of attorney fees is within the sound discretion of trial courts. (PLCM Group v. Drexler (2000) 22 Cal.4th 1084, 1095; Akins v. Enterprise Rent-A-Car Co. (2000) 79 Cal.App.4th 1127, 1134.) "The determination of what constitutes a reasonable fee generally 'begins with the 'lodestar,' i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate....'" "[T]he lodestar is the basic fee for comparable legal services in the community; it may be adjusted by the court based on factors including, as relevant herein, (1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award...." (Graciano v. Robinson Ford Sales, Inc.

(2006) 144 Cal.App.4th 140, 154.) In setting the hourly rate for an attorney fees award, courts are entitled to consider the rate of “fees customarily charged by that attorney and others in the community for similar work.” (Bihun v. AT&T Information Systems, Inc. (1993) 13 Cal.App.4th 976, 997 [affirming rate of \$450 per hour], overruled on other grounds by Lakin v. Watkins Associated Indus. (1993) 6 Cal.4th 644, 664.) The burden is on the party seeking attorney fees to prove reasonableness of the fees. (Center for Biological Diversity v. County of San Bernardino (2010) 188 Cal.App.4th 603, 615.)

The Court has broad discretion in determining the amount of a reasonable attorney’s fee award which will not be overturned absent a “manifest abuse of discretion, a prejudicial error of law, or necessary findings not supported by substantial evidence.” (Bernardi v. County of Monterey (2008) 167 Cal. App. 4th 1379, 1393-94.) The Court need not explain its calculation of the amount of attorney’s fees awarded in detail; identifying the factors considered in arriving at the amount will suffice. (Ventura v. ABM Industries Inc. (2012) 212 Cal.App.4th 258, 274-75.)

Here, Judgment Creditor seeks \$8,100 in attorney’s fees for 21.6 hours of work at \$375 per hour as well as costs in the amount of \$163.50. (Peña Decl. ¶19, Ex 12.)

Judgement Debtors did not formally challenge the reasonableness of Judgment Creditor’s attorney fees. It was their burden to do so. (See, e.g., Lunada Biomedical v. Nunez (2014) 230 Cal.App.4th 459, 488 [“[I]t is the burden of the challenging party to point to the specific items challenged [within the moving party’s verified billing invoice], with a sufficient argument and citations to evidence.”]) Instead, the opposition generally discusses Al Mizrahie’s financial condition and the burden such an award would place on his finances. (Opp. at pp. 1-3.) However, even had Judgment Debtors sufficiently challenged the reasonableness of the fees or costs requested, the Court would still find Judgment Creditor’s requested fees to be a reasonable time spent on all tasks in the matter including the time spent in support of this instant motion and the anticipated time spent at the hearings.

Further, Judgment Debtors have not challenged the reasonableness of Judgment Creditor’s costs, and all costs appear recoverable on their face.

Accordingly, Judgment Creditor’s Motion for Attorney’s Fees is GRANTED in the amount of \$8,100.

Judgment Creditor’s Motion for Costs is GRANTED in the amount of \$163.50.

IT IS SO ORDERED.

Dated: September 16, 2026 _____

Randolph M. Hammock

Judge of the Superior Court

Any party may submit on the tentative ruling by contacting the courtroom via email at SMCDept509@lacourt.ca.gov by no later than 4:00 p.m. the day before the hearing. All interested parties must be copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole or in part.